POLICY & PROCEDURE

MANDATORY COVID-19 VACCINATION POLICY FOR CITY SERVICE CONTRACTORS			**Category:** Human Resources/Personnel **Number:** 700-09 **Classification:** External
Effective Date: 10/5/2021*	**Supersedes**: -	**Policy Originator:** Human Resources and Organizational Development Director	**Approved By:** City Manager _____ Debbie Tarry

*The termination date of this policy will be determined by the City Council and will be dependent on the COVID-19 State of Health Emergency.

1. PURPOSE/SCOPE:

While non-pharmaceutical interventions such as wearing face coverings and social distancing helps to reduce the spread of COVID-19, the COVID-19 vaccination has been proven as a safe and highly effective measure in preventing COVID-19 infection and limiting hospitalization and death. Widespread vaccination is the primary means that the City of Shoreline has to protect the health of all of our employees and their families, the volunteers who serve the City in the public interest, and the residents and the community at large from COVID-19 infections. This includes persons who cannot be vaccinated for medical reasons, youth who are not yet eligible to receive a vaccination, immunocompromised individuals, and vulnerable persons including persons in health care facilities and other congregate care facilities. Widespread vaccination is also the primary means to prevent and curtail the spread of new variants of the COVID-19 virus, avoid the return of stringent public health measures, and end the COVID-19 pandemic.

In order to provide and maintain a safe workplace, the City Council adopted Resolution No. 483 on October 4, 2021, which requires those individuals under contract with the City to provide in-person, on-site services to be fully vaccinated by 12:01 am Local Time, December 1, 2021. The Council's Resolution followed Governor Inslee's Proclamation 21-14.1, dated August 21, 2021, expanding COVID-19 vaccination mandates from State employees within the executive branch to also include all employees working in higher education, K-12 education, most childcare and early learning facilities, and municipal parks and recreation youth programs by October 18, 2021. This Policy shall apply as a condition of providing contracted services at City of Shoreline facilities to all current and future vendors, consultants, and contractors.

2. AFFECTED INDIVIDUALS:

- Service Contractors

3. POLICY:

The City of Shoreline's service contract requires that all services provided to the City be in compliance with all federal, state, and local statutes, rules, and ordinances applicable to the services being provided. As a condition of providing contracted services at City of Shoreline Facilities, all Service Contractors as defined in this Policy must be Fully Vaccinated against COVID-19 with vaccines authorized by the CDC by no later than 12:01 a.m. Local Time, December 1, 2021.

Service Contractors that do not complete the Employer Declaration of Compliance by 12:01 am Local Time, December 1, 2021, shall be considered to be in material breach of their contract and the City shall have the right to immediately suspend or terminate pursuant to the terms of the contract.

The City Manager will not consider an exception of extension to this vaccination mandate for Service Providers.

4. DEFINITIONS:

- **Centers for Disease Control and Prevention (CDC)** – A branch of the United States Department of Health and Human Services that serves as the country's health protection agency and provides formal guidance for state and local governments to use when responding to health-related issues, including the COVID-19 pandemic.
- **City of Shoreline Facility (City Facility)** – City-owned building that is occupied by City staff or where City programs, events or activities are provided and City-owned or managed open space, including but not limited to City parks and the Interurban Trail.
- **Contract Manager** – City of Shoreline staff overseeing the Service Contractor's scope of work.
- **COVID-19 Coronavirus (COVID-19)** – A highly contagious respiratory disease caused by the SARS-CoV-2 virus.
- **Employer Declaration of Compliance (Employer Declaration)** – A document signed by an authorized representative of a Service Contractor declaring that the Service Contractor has obtained proof of Full Vaccination against COVID-19 for its employees who are subject to the City of Shoreline Vaccination Requirement, Resolution No. 483 and this Policy.
- **Food and Drug Administration (FDA)** – A branch of the United States Department of Health and Human Services responsible for food and drug safety.
- **Fully Vaccinated** – A person is fully vaccinated against COVID-19 if two weeks have passed since they received all doses of a vaccine as prescribed by the FDA, CDC, and/or the Washington State Health Officer, including a booster shot based on availability and eligibility.

- **Proof of Vaccination** – Acceptable documentation of a person's or affected party's vaccination status.
- **Service Contractor** – Any contractor, consultant, or vendor, including sole proprietors, that provides in-person services at City Facilities, including parks and recreation programs, whether through a formal or informal agreement, but not including services received through Interlocal Agreements with other governmental entities.
- **State Agencies** – Any department, agency, or instrumentality of Washington State.
- **Washington State Health Officer** – The individual within Washington State's Department of Health, also known as the Chief Science Officer, that serves as the primary science expert on public health issues including communicable disease control, chronic disease and injury prevention, and environmental health threats.

5. PROCEDURES:

5.1 Sign Employer Declaration of Compliance with City of Shoreline COVID-19 Vaccination Requirement. All Service Contractors shall assume responsibility for vaccination verification and accommodation requirements and an authorized representative shall provide the City of Shoreline with a signed Employer Declaration. By signing the Employer Declaration, the Service Contractor declares they have taken the following steps within the timeframe described herein:

5.1.1 Verify proof of full vaccination for existing employees. By December 1, 2021, obtain a copy of or visually observe proof of Full Vaccination against COVID-19 for every current employee who is or will be providing services at City Facilities.

5.1.2 Agree to verify proof of full vaccination for future employees. Obtain a copy of or visually observe proof of full vaccination against COVID-19 for every employee hired after December 1, 2021 who will be providing services at City Facilities.

5.1.3 Return signed Employer Declaration to City of Shoreline via Contract Manager by:

5.1.3.1 Service Contractors with existing contracts that expire after December 1, 2021, shall return the Employer Declaration by no later than 12:01 a.m. Local Time, December 1, 2021.

5.1.3.2 Service Contractors who enter into contracts with the City after December 1, 2021 must submit a signed Employer Declaration as part of their final contract paperwork but no later than the first day of the provision of on-site services.

5.2 Additional information requests. The Service Contractor must submit additional signed Employer Declarations upon the request of and by the date designated by the City of Shoreline.

5.3 City Right to Inquire. The City of Shoreline retains the right to investigate or inquire into a Service Contractor's compliance with the requirements set forth in this Policy, to obtain proof of vaccination directly from any employee of a Service Contractor, and to withdraw its election requiring the Service Contractor to assume responsibility for the vaccination and accommodation requirements contained in this Policy. The Service Contractor must cooperate with any investigation or inquiry the City makes into the Service Contractor's compliance with these requirements, including by providing information and records upon request, except any information or records that the Service Contractor is prohibited by law from disclosing.

6. FAILURE TO COMPLY:

Any Service Contractor that fails to comply with this Policy shall be considered to be in material breach of their contract and the City shall have the right to immediately suspend or terminate pursuant to the terms of the contract.

7. EXHIBITS:

A. Employer Declaration of Compliance